

Tentative Rulings for May 14, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

21CECG03582 *Maria "Coco" Magallen v. Ron Chandler* is continued to Thursday, June 25, 2026, at 3:30 p.m. in Department 502.

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Tentative Rulings for Department 403

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Tentative Ruling

Re: ***Maria Andrade v. Central Valley Sanitation Inc.***
Case No. 24CECG03421

Hearing Date: May 14, 2026 (Dept. 403)

Motion: Plaintiffs' Motion to Strike/Tax Fowler Packing Company, Inc.'s Costs

If oral argument is timely requested, it will be entertained on Wednesday, May 27, 2026, at 3:30 p.m. in Department 403.

Tentative Ruling:

To grant plaintiffs' motion to tax costs by limiting the sum to Fowler Packing Company, Inc.'s costs to \$15,011.65. To deny the motion in all other respects.

Explanation:

After obtaining, Motion for Summary Judgment, which was granted by the Court, and Notice of Entry of Judgment was entered on March 24, 2026, Fowler Packing Company, Inc. ("Fowler" or "defendant") filed a Memorandum of Costs as the prevailing party pursuant to California Code of Civil Procedure Sections 1032 and 1033.5 on March 25, 2026, seeking the following:

Filing and Motion Fees:	\$1,366.14
Deposition Costs:	\$12,712.73
Other:	\$932.78
Total:	\$15,011.65

Under Code of Civil Procedure section 1032, subdivision (b), "a prevailing party is entitled as a matter of right to recover costs in any proceeding." It is undisputed that Fowler is the prevailing party.

The losing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (See Cal. Rules of Court, Rule 3.1700(b).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)

Plaintiffs move to tax and/or strike the entirety of the claimed costs because the Memorandum is facially deficient and because the claimed costs are not recoverable, not reasonable, or not supported as required by law. (Plaintiffs' Moving Papers, pg. 4, Ins. 15-17.)

Failure to Utilize Judicial Council Form MC-011

Plaintiffs move to strike the entirety of Fowler's costs as being facially deficient. Plaintiffs argue that Fowler failed to provide a memorandum of costs worksheet, namely Judicial Council Form MC-011. (Plaintiffs' Moving Papers, pg. 5, Ins. 12-24.) The court notes that the form itself specifically provides that it is "for optional use." Thus, the court does not find this argument persuasive.

Plaintiffs also move to strike Fowler's costs for lack of itemization. (*Id.*) However, plaintiffs' argument misconstrues the law, as such requirements are only imposed after there has been a timely objection to the memorandum of costs. (*Ladas, supra* 19 Cal.App.4th at, 774, quoting Code Civ. Proc., § 1033.5, subd. (c)(2).)

Since the court finds that plaintiffs' timely objected to Fowler's memorandum of costs, the court now considers whether Fowler's requested costs are proper.

Recovery Limited to \$15,011.65

"A party's right to recover costs is governed entirely by statute. [Citation.]" (*Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192.) "To obtain costs, a party must comply with the applicable rules of court. [Citation.]" (*Ibid.*)

Code of Civil Procedure section 1034 states, in part: "Prejudgment costs allowable under this chapter shall be claimed and contested in accordance with rules adopted by the Judicial Council." (Code of Civ. Proc., §1034, subd. (a).) Code of Civil Procedure section 1032 provides, in part, that "[n]othing in this section shall prohibit the parties from stipulating to alternative procedures for awarding costs in the litigation pursuant to rules adopted under Section 1034." (Code of Civ. Proc., §1032(c).)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (CRC, rule 3.1700(a)(1).) Thus, the entry of a dismissal or judgment is a predicate to a costs award. (*Boonyarit v. Payless Shoesource, Inc.* (2006) 145 Cal.App.4th 1188, 1192.)

Here, Motion for Summary Judgment was granted by the Court, and Notice of Entry of Judgment was entered on March 24, 2026. Fowler filed its Memo of Cost on March 25, 2026.

However, in its Opposition, Fowler raised its total costs claimed to \$16,786.66, broken down as follows: \$1,366.14 (filing fees), \$13,983.45 (depositions), \$340.68 (hotels), \$387.18 (mileage), and \$709.21 (subpoenas). (Fowler's Opposition Papers, pg. 2, Ins. 14-20; Hippo Decl. ¶¶ 5-9.) The costs claimed for depositions increased by \$1270.72. The amount requested for "other" costs increased by \$504.29. Because the Opposition was

filed on April 24, 2026, more than 15 days after the date of service of the notice of entry of judgment, the \$1,775.01 additional claimed costs are untimely, and will not be allowed.

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Incurred Bills

Plaintiffs claim that copies of unpaid invoices cannot serve as evidence of incurred costs, and that Fowler was required to submit proof of payment. (Plaintiffs' Reply, pgs. 4-5, Ins. 1-28, 1-14.) This is not the law.

Code of Civil Procedure sections 1032, subdivision (b) provides that "[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." Code of Civil Procedure section 1033.5, subdivision (c)(2) provides that "An award of costs shall be subject to the following: ... (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation."

The Court disagrees. Code of Civil Procedure section 1033.5, subdivision (c)(1) states that "[c]osts are allowable if incurred, **whether or not paid**." [Emphasis added.]

Filing Fees and Non-Vendor Charges

Plaintiffs argue that Fowler's \$1,366.14 "filing and motion fees" should be reduced by \$21.14 pertaining to "Payment Processing" fees; \$65.00 fee pertaining to a "Concierge E Filing" fees with respect to Fowler filing its Motion for Summary Judgment, and a second \$65.00 fee pertaining to a "Concierge E Filing" with respect to Fowler filing its reply to the Motion for Summary judgment, totaling \$151.14. (Plaintiffs' Reply Papers, pg. 7, Ins. 16-23.)

Filing fees are recoverable. (Code Civ. Proc., §1033.5(a)(1).) Pursuant to Code of Civil Procedure section 1010.6(g), documents filed by represented parties in all civil, family law, and probate actions must be filed electronically unless the Court excuses parties from doing so. Thus, the costs associated with the credit card fees and "Concierge E Filing" fees were necessary to the conduct of litigation. (Code Civ. Proc., 1033.5(c)(2).) Therefore, the Court declines to tax these costs.

Other Costs

As discussed above, Fowler now seeks \$1,437.07 in "other costs" comprised of mileage costs of \$387.18, hotel expenses of \$340.68, and costs to subpoena records in the amount of \$709.21. (Jennifer Hippo, Decl. ¶¶ 7-9.) This represents an additional \$504.29

in costs that will be excluded. Furthermore, plaintiffs move to strike the entirety of some these items. Accordingly, each will be analyzed in turn.

The \$709.21 in Subpoena/Records Costs

Plaintiffs make three independent arguments as to why the \$709.21 of costs pertaining to subpoenaing records should be struck. The Court has already addressed the first argument that unpaid bills are allowable as costs pursuant to Code of Civil Procedure section 1033.5, subdivision (c)(1).

Plaintiffs next argue that costs associated with United Health Centers and the Fresno County Coroner should be stricken because Fowler provides no proof that these charges were incurred, as part of the 4th Exhibit to Jennifer Hippo's declaration. However, this argument is moot. In tallying the receipts in the 4th Exhibit to Jennifer Hippo's declaration, the Court found a total of \$785.41, which is \$76.20 above the \$709.21 claimed.

Finally, plaintiffs argue that because Fowler did not initially identify these costs, they should be struck. (Plaintiffs' Reply Papers, pg. 7, Ins. 6-11.) However, Code of Civil Procedure section 1033.5, subdivision (c)(4) provides the Court discretion for "items not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion." Given the nature of this matter, the Court finds the costs associated with Exhibit 4 to Jennifer Hippo's declaration, reasonable and necessary, in the claimed amount of \$709.21.

Hotel Costs

Fowler claims Hotel expenses in the amount of \$340.68, and necessary to prepare both for their depositions and to attend them the next day. (Fowler's Opposition Papers, pgs. 2-3, Ins. 21-28, 1-3.) However, based on Fowler's opposition only \$223.57 of expenses can be claimed by Fowler from the initial \$932.78 of "Other Expenses" Fowler sought, as \$709.21 has already been allocated to costs associated with subpoenaing records.

Plaintiffs' arguments to reduce "sundry" expenses are moot at this point, as they do not tally more than \$117.11, which is the difference between the hotel costs of \$340.68 sought and the remaining costs of \$223.57 that Fowler can claim based on the memorandum of costs Fowler filed on March 25, 2026.

Accordingly, Fowler is entitled to \$223.57 pertaining to hotel costs.

Remaining Costs

Remaining costs are in excess of the \$932.78 of "Other Expenses" Fowler sought. Accordingly, arguments pertaining to these other costs will not be addressed.

Accordingly, Fowler is limited to costs of \$15,011.65.

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Tentative Ruling

Re: ***Dhillon v. RMR Trans Inc. et al.***
Superior Court Case No. 25CECG04302

Hearing Date: May 14, 2026 (Dept. 403)

Motion: By Defendants RMR Trans Inc. and M&J Truckline, LLC to Set
Aside Default

Tentative Ruling:

To grant and strike the entry of default entered November 24, 2025, and the default judgement on January 12, 2026 against M&J Truckline, LLC. (Code Civ. Proc., §§ 473, subd. (b); 473.5.)

To grant and strike the entry of default as to defendant RMR Trans Inc. entered on November 24, 2025, and the default judgement on January 12, 2026. (Code Civ. Proc., §§ 473, subd. (b); 473.5.)

Defendants, RMR Trans Inc. and M&J Truckline, LLC, are directed to file the proposed responsive pleading within five days of service of the order by the clerk.

**If oral argument is timely requested, it will be entertained on
Wednesday, May 27, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Defendants RMR Trans Inc. and M&J Truckline, LLC ("Defendants") separately move to set aside default, entered against them on November 24, 2025, and default judgement entered on January 12, 2026, pursuant to the discretionary relief afforded under Code of Civil Procedure section 473, subdivisions (b) and (d), and section 473.5

Defendants jointly argue that they are entitled to relief under Code of Civil Procedure section 473, subdivision (d) because defective service of summons rendered the entry of default void. Where there is not a valid service of summons, any judgment violates due process of law. (*Peralta v. Heights Med. Ctr., Inc.* (1988) 485 U.S. 80, 84-85.; *Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961.)

Code of Civil Procedure, section 473, subdivision (d) provides that the court may set aside any void judgement or order. If a defendant is a corporation, a copy of the summons and complaint must be served to the designated agent or to an enumerated officer of the corporation. (Code Civ. Proc., § 416.10.) An officer of the corporation includes a general manager, which is any agent of sufficient character and rank to make it reasonably certain that the defendant will be apprised of the service made. (*Gray v. Mazda Motor of America, Inc.* (C.D. Cal. 2008) 560 F.Supp.2d 928, 930.) If the defendant is a corporate entity, service may be made in the first instance by substitute service. (Code Civ. Proc., § 415.20, subd. (a).)

RMR Trans Inc. is a corporation, thus, Code of Civil Procedure section 416.10 is applicable. Plaintiff was required to deliver a copy of the summons and complaint to the person designated as agent for service of process, which was Mangal Singh. (Code Civ. Proc., § 416.10, subd. (a).) While service was made at the agent's address, it was to Mohammad Singh, indicated as "Person in Charge" on the proof of service of summons. Plaintiff Harjot S Dhillon ("Plaintiff") submits that this constituted substitute service on the agent for service of process. In other words, Plaintiff submits that service was effected on the agent for service of process at the person's office or usual mailing address. (Code Civ. Proc., § 415.20, subd. (a).) This does not require, as Defendants suggest, reasonable diligence. (*Compare id.*, § 415.20, subd. (b).) Accordingly, service to RMR Trans Inc. was valid and does not render the entry of default and default judgment void under Code of Civil Procedure section 473, subdivision (d).

Defendant M&J Truckline, LLC also argues that service of the summons and complaint to M&J Truckline, LLC, was defective.

If defendant is a limited liability company, a copy of the summons and complaint may be served to a designated agent by personal service, substitute service, or service by mail with acknowledgement of receipt. (Code Civ. Proc., §§ 415.10, 415.20, subd. (a), and 415.30, subd. (a).) Substitute service is effective if copies of the summons and complaint are delivered to the person's office or left with a person who is apparently in charge who shall be informed of the contents thereof, and thereafter mailed to defendant. (*Ibid.*) Substantial compliance with the statutes governing service of summons may defeat a motion to set aside under section 473, subdivision (d). (*Ramos v. Homeward Residential, Inc.* (2014) 223 Cal.App.4th 1434, 1443.)

M&J Truckline LLC is a limited liability company. Thus, Corporations Code section 17701.16 controls. Service may be effected on the individual designated by the limited liability company as its agent. (Corps. Code, § 17701.16, subd. (b).) Code of Civil Procedure sections 415.10 and 415.20 apply. (See also Code Civ. Proc., § 416.40.) The proof of service states that the address for M&J Truckline LLC was a home and the individual served was Raj Kaur, "Spouse." Code of Civil Procedure section 415.20 for substitute service applies. Plaintiff effected service at the company's address to an individual other than the designated agent. Then, Plaintiff promptly mailed the documents to the same address. It appears Plaintiff substantially complied with Code of Civil Procedure section 415.20 by serving a member of the household at the address listed for the limited liability company and mailing a copy of the summons and complaint to the same address immediately after. Because Plaintiff substantially complied with the statute, the entry of default is not void under Code of Civil Procedure section 473, subdivision (d).

Defendants next argue that they did not receive actual notice of the action, and move under Code of Civil Procedure section 473.5 to set aside the entry of default and the default judgement.

If a party does not receive actual notice from service of a summons, an entry of default or a default judgement can be set aside under Code of Civil Procedure section 473.5. The party may serve and file a notice of motion to set aside the entry of default or

default judgement and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) The party must file an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect. (*Id.*, § 473.5, subd. (b).) The party shall also serve and file with the notice a copy of the answer or other pleading proposed to be filed in the action. The party has 180 days after service of a written notice that the default or default judgement has been entered to serve and file the notice of motion to set aside. (*Id.*, § 473.5, subd. (a).)

Defendant M&J Truckline LLC makes a sufficient showing under Code of Civil Procedure section 473.5 such that the court may set aside the entry of default and default judgement. The designated agent for M&J Truckline LLC filed an affidavit stating that they did not have actual notice of the action before the default judgement on January 12, 2026, and it was not due to avoidance of service or inexcusable neglect. M&J Truckline LLC's motion was timely and included a copy of a proposed answer.

Similarly, defendant RMR Trans Inc. attests that it did not have actual notice of the action, and it was not due to avoidance of service or inexcusable neglect. RMR Trans Inc.'s motion was timely and included a copy of a proposed answer.

Even where actual notice was obtained, Defendants argue in the alternative, that they are entitled to relief under the discretionary provision of the statute because their failure to file a response to the complaint was the result of mistake, inadvertence, surprise, or excusable neglect.

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) The trial court has broad discretion to vacate the judgment and/or the clerk's entry of default that preceded it. That discretion can be exercised only if the moving party establishes a proper ground for relief, by the proper procedure, and within the statutory time limits. (*Cruz v. Fagor America, Inc.* (2007) 146 Cal.App.4th 488, 495.) "Application for this relief ... shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).) "Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits' (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds])." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135.) Where the party seeking relief seeks such relief promptly and no prejudice will result to the opposing party, "very slight evidence will be required to justify a court in setting aside the default." (*Elston v. City of Turlock, supra*, 38 Cal.3d at p. 233.)

Here, Defendants acted quickly upon learning of the default and default judgment and timely filed the instant motion. Critically, Plaintiff has presented no evidence of prejudice, and the law favors dispositions on the merits over procedural technicalities. The court additionally finds that relief is warranted under Code of Civil Procedure section 473, subdivision (b).

For the above reasons, the motion is granted and the defaults entered on November 24, 2025 and default judgement on January 12, 2026 as to each of Defendants are stricken.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 5-13-26
(Judge's initials) (Date)